

**PROCEEDINGS OF EXTRAORDINARY GENERAL BODY
MEETING OF THE COMPONENTS OF COMUNIDADE DE
BAMBOLIM**

On the third day of the month of January of the year two thousand twenty-one (03-01-2021) in the village of Bambolim and at the meeting place of this Comunidade at 10:30 am there arrived Mr. Benevelo B. A. de Souza, President, Mr. Luis de Abreu, Attorney, together with me Mr. Amar Chodankar, Clerk of this Comunidade, in order to preside over the Extraordinary general body meeting of the components of Comunidade de Bambolim, convened to meet to-day in accordance with the Notice published in official gazette, Sr, III No 37 dated 10th December 2020 and also published in local daily 'O Herald' dated 17th December 2020 at page 7, so also the Agenda of the meeting affixed at prominent place and by proclamation made at Bambolim church in due advance and also affixed on the door of Comunidade house, thereby complying all the formalities laid down in the Code of Comunidade in force to discuss and decide the Agenda mentioned in the Notice.

AGENDA

1. To discuss and decide the settlement proposal received from Mr. and Mrs. Pascoal Trindade dated 20th November 2020 in respect of properties surveyed under survey no 93/2, 93/3 & 93/4 admeasuring 97500.00 sq. mts. on account of various litigations prevailing before Hon. Civil Courts and High Court at Panaji viz 66/2009, MCA 6/2010 in 222/94, 52/2013 and LRC 19/2009
2. To discuss and decide the liability of Comunidade upon execution of registered sale deed dated 14/07/2014 with M/s Loonkar Dev. Pvt. Ltd. By Mr. and Mrs. Pascoal Trindade bearing survey no 93/2 of village Bambolim admeasuring 35600 sq. mts. and subsequent possession with Bank of Maharashtra, Margao Branch Goa.

3. To discuss and decide the properties survey no 89/3 and 90/1 of village Bambolim admeasuring 37975.00 sq. mts. executed in favour of M/s Raghūrai Tamba as per the compromise decree dated 21/11/1998 in S.C.S No 222/1994 which is challenged in Civil Suit No 66/2009, MCA 6/2010 in S.C.S. No 222/94 and S.C.S No 4/2014/A and LRC 19/2009.
4. To discuss and decide the expenses incurred individually by components in various writ petitions and Civil Suit No 66/2009 presently prevailing and reimbursement to them from the amount receivable by Comunidade towards settlement proposal if settled with due approval of components in general body meeting.

Thereafter, at proper time, date and place of the meeting the following components were present by observing social distancing, covering face masks etc. due to COVID-19.

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| 1) | Sydel Eusebio Gonsalves | sd/- |
| 2) | Teofilo J. Monteiro | sd/- |
| 3) | Aldrin de Souza | sd/- |
| 4) | Marvin S. Gonsalves | sd/- |
| 5) | Alvito A. de Souza | sd/- |
| 6) | Candid Monteiro | sd/- |
| 7) | Felix F. Monteiro | sd/- |
| 8) | Agnelo Abreu | sd/- |
| 9) | Agnelo D'Souza | sd/- |
| 10) | Jose Mario F de Abreu | sd/- |
| 11) | Walter Gonsalves | sd/- |
| 12) | Stanley Monteiro | sd/- |
| 13) | Jose Lucio Antonio Monteiro | sd/- |
| 14) | Romano Clemente Inacio Peixeto | sd/- |
| 15) | Noel Belem Monteiro | sd/- |
| 16) | Joao Vicente Bernardo Abreu | sd/- |
| 17) | Joao Manual E. Peixeto | sd/- |
| 18) | Ludivico T. Peixeto | sd/- |
| 19) | Elton Paul Monteiro | sd/- |

20)	Oswaldo U. J. A. G. D'Souza	sd/-
21)	Elvis N. B. Gonsalves	sd/-
22)	Daryl F Gonsalves	sd/-
23)	Louis Alvarinho J. de Souza	sd/-
24)	Aston Albert de Douza	sd/-
25)	Vincent D'Souza	sd/-
26)	Gregorio Peixeto	sd/-
27)	Bruno Belem R.J. Monteiro	sd/-
28)	Ivan D'Souza	sd/-
29)	Jose B. Peixeto	sd/-

The President verified that the components present were sufficient to form the quorum and declare the meeting open.

At the very outset, the President of Comunidade informed that the proposal submitted by Mr. Pascoal Trinidad and Mrs. Albertina Trinidad, resident of Dona Paula, Tiswadi Goa vide letter dated 20th November 2020 was discussed by the Managing Committee in the Ordinary Meeting held on 6th December 2020 resolved and approved to place the said proposal before the components of the Comunidade de Bambolim in general body meeting since the powers to withdraw and compromise Civil Suit has to be deliberated by the Comunidade (components) in accordance with Clause 4(g) of Article 30 of Code of Comunidades.

In addition to above, the President briefed the components the synopsis and important events of various prevailing suits for appropriate decision on the proposed Agenda.

AGENDA POINT NO. 1

To discuss and decide the settlement proposal received from Mr. and Mrs. Pascoal Trinidad dated 20th November 2020 in respect of properties surveyed under survey no 93/2, 93/3 & 93/4 admeasuring 97500.00 sq. mts. on account of various litigations prevailing before Hon. Civil Courts and High Court at Panaji viz 66/2009, MCA 6/2010 in 222/94, 52/2013 and LRC 19/2009.

The President placed the settlement proposal submitted by Mr. Pascoal Trinidad and Mrs. Albertina Trinidad dated 20 November 2020 before the components in the general body meeting of Comunidade de Bambolim, assembled in today's meeting which proposal mentions as under:

- I. Transfer of Settlement area admeasuring 5000.00 sq. mts. in any one out of the above preferred properties that is 93/2, 93/3 & 93/4 property demarcated and fenced.
- II. Payment of Compensation of rupees ten crores only (Rs. 10,00,00,000.00) payable to Comunidade of Bambolim.
- III. Construction of Cultural / Sports Arena on the above mentioned 5000.00 sq. mts. consisting of basket ball court, badminton court, volley ball court, a stage, ladies and gents toilets.

- a) The said proposal was discussed in detail by the components taking into consideration claim of Pascoal Trinidad about execution of three sale deeds dated 25/04/2006 in respect of properties surveyed under survey number 93/2, 93/3 and 93/4 of village Bambolim by Mrs. Dionisia Dias e Mergulhao, wife of deceased Maximo Mergulhao and M/s Raghurai Tamba as the Confirming Party and also the Agreement of Sale Deed dated 24/4/2006 between the Vendor, Purchaser and Confirming Party, as well as pending suits filed by Comunidade viz Civil Suit No 66/2009 filed by Benevelo B. A. de Souza and another (Comunidade being respondent transposed as applicant by Court Order dated 16th October 2014), LRC 19/2009, MCA 6/2010 in 222/94, 52/2013, CRA 41/2018, CRA 46/16 and W.P 558/2016. The Orders passed by the Hon. Civil Courts in favour of Comunidade dated 30/7/2016 and 23/10/2018 are challenged by Mr. Pascoal Trinidad in Civil Revision Application No. 46/16 and 41/2018 before the Hon'ble High Court Bombay Bench at Panaji. The temporary Injunction Application filed by the Comunidade in Civil Suit no. 52/2013/A is decided by the Hon'ble Court vide order dated 13/03/2020 ordering the respondents No. 1 and 2 i.e., Mr. Pascoal Trinidad and Mrs. Albertina

Trinidade from starting any development and interfering in the suit property under survey No.93/2, 3 and 4 of village Bambolim till disposal of the suit.

- b) The components noted that there were various names in other rights columns of these survey numbers and Pascoal Trinidade has got the names deleted by filing Civil Suit No. 6/2007 and has also converted the land by obtaining conversion sanad and has claimed that they have invested huge amount for development for which litigation has become long and since 2009 the Comunidade is spending its time and money. There is also issue of delay in approaching court in 2009 after decree in 1998. .
- c) The components further pointed out during the discussion that there are 3 clauses incorporated in all the 3 sale deeds dated 25/4/2006 in respect of properties bearing survey no 93/2, 93/3 and 93/4 executed in favour of Mr. Pascoal Trinidade, viz (i) that M/s Raghurai Tamba as a Confirming Party to the said sale deed and that Mr. Raghurai Tamba representing the firm and (ii) that the Confirming Party / Purchaser shall be solely responsible to comply with all the undertakings / commitments given to the Comunidade of Bambolim, the other rights holders or whomsoever without any reference or liability to THE VENDOR be it in the matter of compliance, payment of compensation to them or otherwise. The Components therefore requested the Managing Committee through its Attorney to get confirmation from learned advocate appointed by Comunidade dealing the suit on legal point raised therein so as to avoid any further litigation upon signing the Consent Terms in Special Civil Suit No. 52/2013/A.

In view of involvement of complicated issue of claim and multiple litigations as stated above, the delay involved in getting the suits resolved through courts and liability towards payment of professional fees to the learned advocates appointed by Comunidade to defend the interest of Comunidade, as these being the genuine reasons, **the**

Who was present for general body meeting

components, except Mr. Agnelo D'Souza, [^]unanimously resolved and approved the settlement proposal submitted by Mr. Pascoal Trinidad & Mrs. Albertina Trinidad vide letter dated 20th November 2020 in respect of the properties bearing no 93/2, 93/3 & 93/4 admeasuring 97500.00 sq. mts. of revenue village of Bambolim, subject to the point raised at (c) above. Since it is a settlement in Special Civil Suit No. 52/2013/A, the dispute will be settled in this suit in relation to survey no 93/2, 93/3 and 93/4 as the Consent Decree dated 21/11/1998 is challenged and not accepted by the Comunidade by filing MCA No. 6/2010/B and after disposal of Special Civil Suit No. 52/2013/A, Civil Suit no. 66/2009, LRC 19/2009 and M.C.A. 6/2010 in Civil Suit No. 222/94 will be amended by excluding the ~~properties~~ under survey no 93/2, 93/3 and 93/4 and the claim in respect of survey number 89/3 and 90/1 shall continue and upon approval of Administrative Tribunal, the suit has to be compromised and disposed.

The President of Comunidade presented the Consent Terms drafted by learned Advocate for Comunidade and agreed by Mr. Pascoal Trinidad, Mrs. Albertina Trinidad and M/s Loonkar Dev. Pvt. Ltd. which the components informed that due to lengthy discussion on Agenda Point No. 1, although settlement proposal is accepted, it would not be appropriate to discuss and give their opinion on the Consent Terms due to shortage of time and that the components will feedback with suggestions / alterations within reasonable time. The components desired that the draft Consent Terms should be annexed with the survey plan, location, dimension and infrastructure details of proposal raised at (III) regarding construction of Cultural / Sports Arena on the above mentioned 5000.00 sq. mts. consisting of basketball court, badminton court, volley ball court, a stage, ladies and gents' toilets, submitted by Mr. Pascoal and Mrs. Albertina Trinidad in the settlement proposal dated 20/11/2020 and place in the next general body meeting for approval along with consent for settlement from Administrative Tribunal.

The President also informed that the minutes recorded in the extraordinary general body meeting held on 3rd January 2021 has to be presented to the President, Administrative Tribunal Panaji through Administrator of Comunidade, Central Zone, Panaji, Tiswadi for consent and approval in accordance with Article 154 (3), 349 and 350 of Code of Comunidade. The services of Advocate Pronoy Kamat appointed by the Comunidade will deal the case before the Administrative Tribunal which the components agreed and approved, therefore the Agenda item No. 1 stands discussed and agreed by general body with condition mentioned at (c) above before signing the *compromise terms*.

AGENDA POINT NO. 2

To discuss and decide the liability of Comunidade upon execution of registered sale deed dated 27/07/2014 with M/s Loonkar Dev. Pvt. Ltd. By Mr. and Mrs. Pascoal Trindade bearing survey no 93/2 of village Bambolim admeasuring 35600 sq. mts. and subsequent possession with Bank of Maharashtra, Margao Branch Goa.

The Agenda point No 2 was placed before the general body of components for discussion on the above subject matter.

- a) The President informed the components that M/s Loonkar Dev. Pvt. Ltd. Mumbai purchased the property surveyed under survey No. 93/2 of village Bambolim admeasuring 35600 Square meters from Mr. and Mrs. Pascoal Trindade by a registered Sale Deed dated 14/07/2014 during the pendency of Special Civil Suit No. 52/2013/A under section 52 of Transfer of Property Act, except under the authority of the court and on such terms the court may impose.
- b) In view of Proposal submitted by Mr. & Mrs. Pascoal Trindade vide letter dated 20/11/2020 in respect to the properties surveyed under survey No. 93/2, 3&4 of village Bambolim, M/s Loonkar Dev.

Pvt. Ltd. was consulted and agreed to allocate land/area admeasuring five thousand square meters to Comunidade de Bambolim in survey No. 93/2 of village Bambolim and further stated that the said land is without any encumbrances or mortgage or attachment to the Bank of Maharashtra, Madgaon Branch and that they would not have any claim which is in their possession and that will sign the Consent Terms, vide letter dated 30th December 2020 communicated to the Comunidade of Bambolim. The components desired that the land to be allocated in one location duly demarcated in the Survey Plan in survey no 93/2 of village Bambolim, Tiswadi Taluka in consultation with the components of Comunidade.

The Bank of Maharashtra, Margao Branch Goa has submitted a letter dated 30 December 2020 to the President of Comunidade stating that M/S. Loonkar Dev. Pvt. Ltd. has cleared the loan pertaining to survey no. 93/2 of village Bambolim.

In view of confirmation communicated by learned Advocate Raunag Rao vide letter dated 2/12/2020 on behalf of Mr. & Mrs. Pascoal Trindade and also by M/s Loonkar Dev. Pvt. Ltd. vide letter dated 30th December 2020 the components after discussion resolved agreed and approved Agenda Point No.2 provided that there will be no liability on Comunidade upon signing the Consent Terms.

AGENDA POINT NO. 3

To discuss and decide the properties survey no 89/3 and 90/1 of village Bambolim admeasuring 37975.00 sq. mts. executed in favour of M/s Raghurai Tamba as per the compromise decree dated 21/11/1998 in S.C.S No 222/1994 which is challenged in Civil Suit No 66/2009, MCA 6/2010 in S.C.S. No 222/94 and S.C.S No 4/2014/A and LRC 19/2009.

The Agenda item no 3 was placed before the general body of components for discussion on the above subject matter.

The President informed that the properties surveyed under 89/3 and 90/1 of village Bambolim admeasuring 37975.00 sq. mts. are presently in possession with M/s Raghurai Tamba as per the compromise decree dated 21/11/1998 in S.C.S No 222/1994. The said properties are challenged in Civil Suit No. 66/2009, MCA 6/2010 in S.C.S. No 222/94 and S.C.S No 4/2014/A and LRC 19/2009 at various courts and before the Deputy Collector, North Goa, Panaji.

The Learned Advocate defending the interest of Comunidade was consulted on the said issue in view of settlement proposal submitted by Mr. & Mrs. Pascoal Trindade dated 20/11/2020 of 3 properties namely survey no 93/2, 93/3 and 93/4 of village Bambolim and the impact of balance two properties that is survey no 89/3 and 90/1. The Learned Advocate vide letter dated 04/12/2020 has clarified that the litigation and claim of Comunidade to the properties surveyed under survey no 89/3 and 90/1 will continue in S.C.S. No 4/2014/66/2009, LRC 19/2009 and MCA 6/2010 in 222/1994, while survey no 93/2, 93/3 & 93/4 will be excluded by way of amendment.

In view of above clarification communicated by learned Advocate Pronoy Kamat defending the interest of Comunidade in his letter dated 04/12/2020, the components, after lengthy discussion resolved and agreed to carry out necessary amendment in various suits and continue the suit filed against M/s Raghurai Tamba as well as Mrs. Dionisia Dias e Mergulhao and others. Hence Agenda item no. 3 stands discussed, agreed and disposed.

AGENDA POINT NO. 4

To discuss and decide the expenses incurred individually by components in various writ petitions and Civil Suit No 66/2009 presently prevailing and reimbursement to them from the amount receivable by Comunidade towards settlement proposal if settled with due approval of components in general body meeting.

The Agenda item no 4 was placed before the general body of components to discuss and decide on the above subject matter.

The components have not agreed for reimbursement towards the expenses incurred individually by components in various writ petitions and Civil Suit No 66/2009.

And the proceedings of the present extraordinary general body meeting of the components are written, closed, read and signed below by the President and Attorney along with me Mr. Amar Chodankar, Clerk of this Comunidade who wrote this.

President – Benevolo de Souza

sd/-

Attorney – Luis de Abreu

sd/-

Clerk – Amar Chodankar

sd/-